

Deal Structure Options — Equity JV vs Commission Agency

The two incompatible structures on the table, compared on the terms that matter.

Pack 14 — Partnership & Legal

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Document	Deal Structure Options — Equity JV vs Commission Agency
Purpose	Frame the single most important open decision so it can be resolved cleanly with the CEO.
Status	Build-now · Options analysis (N2: neither asserted as chosen)
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BOTTOM LINE UP FRONT

Prior material described **two incompatible deals** — an equity joint venture and a commission/agency arrangement. They differ fundamentally on capital, liability, control and upside. This document does not assume which is real; it compares them so the CEO conversation (Pack 22, Q1) resolves it deliberately. Everything financial and legal downstream depends on this answer.

The two structures, compared

Dimension	Equity JV (co-owned UK Ltd)	Commission / Agency
Your stake	Ownership share (e.g. 50/50)	No equity; % of contract value
Capital at risk	Yes — you fund/own part of an operating company	Low — you fund your own sales activity
Liability	Shared operating liability	Typically none for product/engineering (to confirm)
Upside	Enterprise value if it grows and is sold	Ongoing commission income
Control	Board rights, reserved matters	Contractual, not ownership control
Downside	Real — jointly liable for a company	Limited — lose time/effort, not capital
Funding relevance	Start Up Loan / equity injection	Mainly self-funded sales overheads

Why this must be resolved first

EVERYTHING HANGS ON THIS

The legal form (Pack 14), the funding plan (Pack 16/17), the financial model's revenue treatment (Pack 16), and your personal risk all change completely between these two structures. Proceeding without resolving it would mean building half the package on sand. It is Question 1 to the CEO for exactly this reason.

A decision lens (not a recommendation)

Neither is "better" in the abstract — it depends on your appetite: - **Equity JV** suits you if you want ownership upside and are willing to carry capital and operating risk. - **Agency** suits you if you want lower risk and faster

income with less capital exposure, accepting no equity.

The right choice is a conversation about what each side actually contributes and wants (Pack 22, Q1/Q3/Q9) — informed by a solicitor before signing.

Implication

Resolve this with the CEO before finalising Packs 16–18. This document, the terms checklist, and the solicitor brief in this Pack give you the structure to have that conversation precisely.

Sources & confidence

Claim	Source	Confidence
Two structures described	prior planning material	 Both present, contradictory
Comparison dimensions	standard JV/agency law	 Reasoned (not legal advice)